

3. 9:00 AM CASE NUMBER: C25-01821
CASE NAME: JAMES BIDWELL VS. DOROTHY GALLOWAY
HEARING ON ORDER TO SHOW CAUSE IN RE: DISMISSAL
FILED BY:

TENTATIVE RULING:

This case trails the hearing for Line 12. This case is **dismissed** without prejudice. No appearance is required at the hearing on July 8, 2026.

4. 9:00 AM CASE NUMBER: C25-01863
CASE NAME: DARON OLIVER VS. SELINA CHEUNG
CASE MANAGEMENT CONFERENCE TO TRAIL HEARING ON DEMURRER TO COMPLAINT
FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearings on the Demurrer and Motion to Strike for Lines 13 and 14. The hearing for those motion were **vacated** by stipulation. This CMC is continued to January 4, 2027 at 8:30 a.m. Counsel are ordered to meet and confer to discuss alternative dispute resolution and to file a further Case Management Conference pursuant to Court rules. No appearance is required on July 8, 2026.

Law & Motion

5. 9:00 AM CASE NUMBER: C23-02391
CASE NAME: OLD REPUBLIC TITLE COMPANY VS. JEANNIE GREGORI
HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL
FILED BY: GREGORI, JEANNIE M.

TENTATIVE RULING:

Summary

Attorney Sil Vossler, who is Counsel for Defendants Jeannie M. Gregori and Shannon Gregori Duke, filed a Motion to be Relieved as Counsel. The Motion is **granted** as set forth herein.

Background

This case arises from a family dispute concerning the management of decedent David Gregory's (David) care, assets, and finances in his last years, with particular focus on the sale of David's home while he was in an assisted living facility. Defendants Shannon Gregori Duke and her sister Jeannie Gregori are David's daughters, and Gilbert is David's brother. While David's house was sold in or around November 2020, the sale proceeds had not been claimed as of the date of David's death on October 20, 2022. Plaintiff Old Republic Title Company (ORTC) filed the initiating interpleader complaint on September 21, 2023, alleging competing claims to the house sale proceeds still in ORTC's

possession, naming Shannon and Gilbert as defendants, among others. There are various crossclaims in this action.

On February 26, 2026, Sil Vossler, (“Withdrawing Counsel”) who is Counsel for Defendants Jeannie M. Gregori and Shannon Gregori Duke, filed a Motion to be Relieved as Counsel. Withdrawing Counsel supports his motion with a declaration claiming that “A irreparable breakdown has occurred in the attorney–client relationship such that continued representation is no longer feasible. I requested that my client execute a substitution of attorney to permit withdrawal without court intervention. The substitution has not been executed. Accordingly, court approval is required. [] I have taken reasonable steps to avoid prejudice to my client, including providing notice of my intent to withdraw and advising the client to seek substitute counsel.”

Analysis

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. §§284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination “upon the consent of both client and attorney,” or “upon order of the court, upon the application of either client or attorney, after notice from one to the other.” Defendant’s Counsel has complied with the provisions of this rule and statute providing notice to Plaintiff and supporting this motion with a declaration articulating the reasons for withdrawal.

The Court finds that there is good cause to grant this Motion to relieve Withdrawing Counsel. The Court acknowledges that the prejudice to Defendants is minimal, as there is ample time for Defendants to retain new trial counsel before the trial setting conference set for September 8, 2026.

Ruling

After reviewing the papers submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of Withdrawing Counsel to be Relieved as Counsel of Record. The Court makes the following orders:

1. This motion is **granted**.
2. The Court will execute the Proposed Order Granting Attorney’s Motion to be Relieved as Counsel (Judicial Council Form MC-053) as lodged on February 26, 2026. The withdrawal is effective immediately.
3. Defendant’s Counsel is ordered to serve a copy of the Order (MC-053) to Defendants by mail at their last known address, along with a change of address form, Judicial Council Form MC-040, instructing the client to fill out and file the change of address form with the Court.
4. The Court confirms the Trial Setting Conference for September 8, 2026 at 8:30 a.m. Withdrawing Counsel is ordered to provide notice to Defendants of this TSC, and to inform Defendants that they are ordered to appear remotely via Zoom and that they are ordered to seek substitute counsel. The Court’s prior orders disqualifies Jeannie Gregori from serving as Counsel to her sister, Shannon Gregori Duke, in this case.
5. Withdrawing counsel shall file a proof of service form indicating that the client was served

with the Court's Order (MC-053) and the Change of Address form (MC-040).

6. 9:00 AM CASE NUMBER: C23-02758

CASE NAME: JOSHUA RICCABONA VS. DOLANS OF PINOLE LUMBER AND BUILDING MATERIALS CO.
HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT
FILED BY: RICCABONA, JOSHUA

TENTATIVE RULING:

Summary

The Court **grants** preliminary approval to the Class Action and PAGA Settlement ("Settlement") between Plaintiff Joshua Riccabona and those similarly situated ("Plaintiff") and Defendants Dolans of Pinole Lumber and Building Materials Co. and Dolans of Concord ("Defendants"). No appearance is required at the hearing on July 8, 2026.

Background

A summary of the proposed settlement terms follows. The Settlement creates a Gross Settlement Amount of \$662,000.00 to resolve claims alleging Labor Code violations including failure to pay minimum and overtime wages, meal and rest period violations, inaccurate wage statements, and related claims for the Class Period of December 29, 2018, through December 23, 2024.

The Settlement Class consists of all persons who worked for Defendants in California as hourly-paid or non-exempt employees during the Class Period. The Court is requested to provisionally certify this Class for settlement purposes only; to appoint Plaintiff Joshua Riccabona as Class Representative, and to appoint John G. Yslas, Jeffrey C. Bils, Emily K. Borman, and Courtney M. Miller of Wilshire Law Firm, PLC as Class Counsel. The Court is also requested to appoint ILYM Group Inc. as Settlement Administrator.

From the Gross Settlement Amount of \$662,000.00, the following payments shall be deducted upon final approval: (1) a Class Representative Service Payment of up to \$10,000.00 to Plaintiff; (2) attorneys' fees to Class Counsel not to exceed one-third of the Gross Settlement Amount (\$220,666.67); (3) litigation costs to Class Counsel not to exceed \$47,000.00; (4) Settlement Administration Costs not to exceed \$7,750.00; (5) PAGA civil penalties of \$30,000.00; and (6) individual class payments to participating Class Members. The Net Settlement Amount available for distribution to Class Members after these deductions is estimated to be \$346,583.33.

The \$30,000.00 PAGA penalty allocation shall be distributed as follows: 75% (\$22,500.00) to the California Labor and Workforce Development Agency ("LWDA") and 25% (\$7,500.00) to Aggrieved Employees as Individual PAGA Payments. Individual class payments to Class Members shall be calculated based on the number of workweeks worked during the Class Period, while Individual PAGA Payments shall be calculated based on the number of PAGA Pay Periods worked. For tax purposes, individual class payments shall be allocated 20% to wages and 80% to interest and penalties, while Individual PAGA Payments shall be allocated 100% to penalties. Defendants shall separately pay all employer payroll taxes on the wage portions of individual class payments.

No portion of the Gross Settlement Amount shall revert to Defendants. Any uncashed checks shall be